

19STCV23068 19STCV23068

County: los-angeles

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19STCV23068 ZHOU V SIADATAN

Defendant gave a false answer to discovery. It had sub rosa videos and did not disclose them. Now defendant seeks to hide behind its false answer and say that because a motion to compel was not made, there is no remedy for the plaintiff. Defendant is wrong. It is different if there had been no answer. Instead, defendant made an answer which hid the actual truth, without plaintiff knowing about the truth until the deposition. This is the part which defendant fails to recognize is the unfairness. How was plaintiff to know that the answer was not the whole truth?

The court is inclined to make a change to its ruling. The plaintiff's testimony concerning the videos at the time of deposition will be excluded and cannot be used for any purpose. Any expert who was provided the videos cannot comment or mention them in their testimony, including whether they reviewed them, until the videos are shown in court. Any mention in any expert report must be redacted before shown to jurors. However, the videos may be used in cross-examination of the plaintiff. EC 780(i) allows the cross-examiner to prove that any fact testified to by the witness is untrue, regardless of whether it's relevant to the case or otherwise inadmissible. Defendant's expert may rely on testimony given at trial. If the videos are used in cross-examination of the plaintiff, then defendant's expert can comment on them in their testimony.

The court reminds Mr. Blum that it was entirely improper to send a letter directly to the judge.